

The Assam Famine Relief and Insurance Fund Rules, 1962

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State of Assam - Act

The Assam Famine Relief and Insurance Fund Rules, 1962

ASSAM

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The Assam Famine Relief and Insurance Fund Rules, 1962

Rule THE-ASSAM-FAMINE-RELIEF-AND-INSURANCE-FUND-RULES-1962 of 1962

Published on 30 May 1962

Commenced on 30 May 1962

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The Assam Famine Relief and Insurance Fund Rules, 1962

Published in the Assam Gazette, Part 2A, dated 30th May, 1962, pages 1944-46

Last Updated 12th February, 2020

1.

These rules may be called the Assam Famine Relief and Insurance Fund Rules, 1962.

2.

In these rules unless there is anything repugnant in the subject or context-

(a)

"the Act" means the Assam Famine Relief and Insurance Fund Act, 1948 (Assam Act 28 of 1948

);

(b)

"Rules" means the rules framed under the Act;

(c)

"Section" means a section of the Act;

(d)

"State" means the State of Assam.

3.

The contribution to the fund will be made from the general revenues of the State under Section 4 of the Act by debit to the major head "64-B. Transfer to Famine Fund". As regards operation of the fund, the necessary amounts should be provided both for General and Part A, Tribal Areas of the Sixth Schedule to the Constitution, under different sub-heads under "64-Famine-A- Famine Relief" for expenditure on gratuitous relief and test relief, etc. On the receipt side of the budget, provision should be made annually under the minor head "Amount transferred from the Relief Fund" under the Major Head "XLVII-Transfer from the Famine Relief Fund".

4.

The Secretary or in his absence, the Deputy Secretary or the Under-Secretary, as the case may be, in charge of Revenue Department of the Government of Assam, shall control the fund and may sanction withdrawals from it not exceeding the total amount provided expenditure on gratuitous relief, test relief, etc.

5.

No expenditure from the fund shall be made on loans. Since expenditure on gratuitous relief and test relief, etc., will be financed by the withdrawal from the fund to the extent of actual requirement, the unspent amount, if any, provided on the expenditure side of the budget should be surrendered at the end of each financial year.

6.

The Secretary, or in his absence the Deputy Secretary, or the Under-Secretary, as the case may be, in charge of Revenue Department of the Government of Assam may sanction amounts on relief measures in the Plains District of Assam within the amount provided in the budget in the case of any one calamity up to Rs. 5,000 without referring to Finance Department. But concurrence of Finance Department will be necessary in sanctioning any amount in excess of Rs. 5,000 in the case of any one calamity.

7.

The Secretary, or in his absence, the Joint Secretary, the Deputy Secretary or the Under-Secretary, as the case may be, in charge of the Tribal Areas and Welfare Department may sanction amounts for relief measures in the Part-A Tribal Areas of the Sixth Schedule to the Constitution within the amount provided in the budget for that area up to Rs. 5,000 in the case of any one calamity without referring to Finance Department. But concurrence of the Finance Department will be necessary in sanctioning any amount in excess of Rs. 5,000 in the case of any one calamity. Copies of all sanctioning letters shall be sent to the Revenue Department for record.

8.

When there is an existence of distress as specified in Section 5 of the Act, in any District of the State, the Deputy Commissioner or the Sub-Divisional Officer, as the case may be, after proper enquiry, shall immediately submit a detailed report of such distress, stating the reasons thereof and the relief he considers necessary, to the Government in the Revenue Department in case of Plains District and Tribal Areas Department in case of Part-A, Tribal Areas of the Sixth Schedule to the Constitution. On receipt of such a report if the Government in the appropriate Department, after consideration of the various aspects of the privations, are satisfied that it is a bona fide case and deserves relief, the necessary grant may be sanctioned. Any such grant when sanctioned shall be utilised strictly on gratuitous relief, either in kind or in cash or in test relief, as the case may be, and no expenditure from such grants shall be made on loans. Proper accounts shall be maintained by the Deputy Commissioner or Sub-Divisional Officer receiving the grants, which shall be subject to audit by the Accountant General, Assam and the unspent balance, if any, out of such grants shall be surrendered to Government in the appropriate Department sanctioning the grant, in proper time at the end of each financial year.

9.

As the end of each financial year the Accountant-General, Assam will work out the actual expenditure incurred on relief measures during the year and shall debit a corresponding amount to the fund by per contra credit to the Head "XLVII-Transfer from Famine Relief Fund".

10.

The accounts of the fund shall be made up at the end of each financial year by the Accountant-General, Assam, in a proforma account as prescribed in the Appendix to these rules.

11.

(1)

The Assam Famine Relief and Insurance Fund Rules, 1950 published under Notification No. R.L. 23/47/90, dated 1st June, 1950 are hereby repealed.

(2)

Any order made or any action taken or anything done under the provisions of the rules so repealed, shall be deemed to have been made or taken or done under the corresponding provision of the rules.

Appendix

Account of the Assam Famine Relief and Insurance Fund for the year ending the 31st March, 20

Receipts

Rs.

Payments

1.

Transfer from the Revenue Account

....

1.

Transfer to the Revenue Account

2.

Interest receipt

....

2.

Transfer to general balances for repayment of debt

3.

Recoveries of Famine expenditure

....

3.

Loss on realisation of securities

4.

Gain on realisation of securities

....

4.

Other payments

5.

Other items-

Total receipts

Total payments

Opening balance

Closing balance

Total

Total

Cash

Cash

Securities held by the Fund

Securities held by the Fund

Purchase Price

Purchase Price

Nominal Value

Nominal value

Market Value on 1st April, 20....

Market value on 1st March, 20....

Total

Total

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